

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-30

NIELSEN & BAINBRIDGE, LLC

v.

OCEAN NETWORK EXPRESS PTE. LTD.

SECOND JOINT MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainant Nielsen & Bainbridge, LLC (“Complainant” or “NBG”), and Respondent Ocean Network Express Pte. Ltd. (“Respondent” or “ONE”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Motion to Extend Deadlines (“Motion”) and respectfully request a 30-day extension of the remaining deadlines set forth in the Presiding Officer’s June 24, 2026 Second Amended Scheduling Order to accommodate the current progress of the Parties’ discovery, which is progressing as quickly as possible, and to provide a more workable deposition schedule.

I. The Current Schedule

On June 24, 2026, the Presiding Officer entered a Second Amended Scheduling Order with the following deadlines relevant to this Motion:¹

¹ Dkt. 22.

EVENT	CURRENT DEADLINE
Parties file Joint Status Report 4 regarding status of discovery	August 4, 2026
Complete depositions of fact witnesses	August 27, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	August 27, 2026
Disclosure of initial expert reports, if any	September 9, 2026
Disclosure of rebuttal expert reports, if any	September 18, 2026
Complete expert depositions	October 2, 2026
Close of discovery	October 2, 2026
Complainant's Brief, proposed findings of fact, appendix due	November 2, 2026
Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due	December 2, 2026
Complainant's Reply Brief, response to Respondent's proposed findings of fact due	December 16, 2026

The Parties submit the below as good cause for an additional 30-day (plus slight modifications to accommodate deadlines falling over weekends) extension of each of the respective dates at issue:

The Parties have worked together to make significant steps in the discovery process in the present matter, beginning with serving their initial requests for production of documents and interrogatories (the "Discovery Requests") on February 9, 2026. The Parties submitted objections and responses to the Discovery Requests on March 11, 2026. With the initial Discovery Requests and the corresponding objections and responses exchanged, the Parties negotiated and executed an ESI Protocol containing negotiated search terms on March 26, 2026. The parties worked together to finalize a proposed Protective Order, filed on March 26, 2026, which was approved with modifications on March 27, 2026.

Complainant has worked diligently to make progress towards completing fact discovery. As previously reported, Complainant substantially completed its document production on May 29, 2026.

Respondent served its first production of 1,062 documents (roughly 2,100 pages) on May 8, 2026. Respondent made a second rolling production of 687 documents (roughly 3,648 pages) on June 26, 2026. Respondent made a third rolling production of 966 documents (roughly 5,931 pages) on July 8, 2026. Respondent made its fourth and final rolling production of 34,448 documents (roughly 118,276 pages) on July 28, 2026. On July 30, 2026, Complainant provided Respondent with a preliminary list of seven deponents that it seeks to depose, subject to supplementation based upon a review of the documents produced by ONE. (Complainant observes that it could not realistically develop such a list of desired deponents until late in July because the sparse available documents and interrogatory/RFP responses simply did not provide a sufficiently detailed understanding of individuals' involvement on which to base the list.)

The Parties met and conferred on scheduling depositions on July 30, 2026. The Parties submitted their joint status report on August 4, 2026, which noted: "the need for NBG to review ONE's recent production, NBG former employee witnesses' availability, [and] the ongoing deposition schedule in the severed NBG proceedings against other carriers, . . . may create scheduling conflicts under the present Scheduling Order" while also noting the Parties' keen appreciation of the Presiding Officer's warnings regarding further extensions requests and the strenuous effort that the Parties have made and continue to make to meet the deadlines in the Second Amending Scheduling Order. Given the timing of Respondent's voluminous final production, Complainant believes that additional time to review this production is warranted to give Complainant fair opportunity to prepare for depositions.

As stated above, Respondent in compliance with the current Scheduling Order served rolling productions of documents on June 26, July 8 and July 28, 2026. While there will be additional productions of AEO documents requiring redactions, Respondent's July 28, 2026, production substantially completes Respondents' productions. Respondent continues to review Complainant's productions of documents which amount to a total of 66,445 documents and approximately 169,650 pages.

Respondent has identified ten potential NBG witnesses, the names of which have been communicated to Complainant. Respondent's counsel is still working with ONE to ascertain the exact involvement of the potential witnesses and verify if such list can be reduced. Respondent is on notice from Complainant that since none of the potential witnesses are currently employed by NBG subpoenas will be needed to request their deposition. Complainant and Respondent are cooperating so that the process of arranging the deposition by subpoenas will be as smooth as possible. That being said, notwithstanding the parties' best efforts, the arrangements are logistically more complex than in a normal situation since Complainant has no control over the witnesses and other carriers in other FMC matters also want to depose the same former NBG employees. Respondent submits that the peculiarity of the situation warrants the grant of additional time.

In sum, this request is based on the timing of the Parties' productions and the resources needed and reasonable notice needed to plan and execute a complex deposition calendar. To provide a workable deposition schedule, using all reasonable efforts, the Parties respectfully submit that the request made herein be granted.

II. Good Cause Exists to Extend the Current Deadlines

A. The Large Number of Recently Produced Documents Requires Time to Review to Avoid Prejudice to Complainant Regarding Its Preparation for Depositions

The Parties keenly appreciate the importance of the deadlines set forth in the Second Amended Scheduling Order, and to date have worked together diligently and collaboratively to satisfy its terms. However, from Complainant's perspective, the production timing and size of the responsive documentation means that even with all its best efforts, it will not have time to review over the course of the coming days 34,000+ produced documents in a manner that would it allow to take and defend depositions on an even playing field with Respondent. Respondent, after all, has had all of Complainant's produced documents since the end of May.

Complainant's perspective on the document discovery in this proceeding is this: Respondent met the letter, but not the spirit, of the Presiding Officer's Second Amending Scheduling Order. *See* Second Amending Scheduling Order at 2 (ordering Respondent to begin rolling productions no later than June 26, 2026 and to make a second production no later than the week of July 19). That may be due to vendor issues outside of Respondent's control. But regardless, until the end of June, the only documents Respondent produced to Complainant were service contracts, sea waybills, invoices, and similar shipping records, with no email communications whatsoever. Respondent's subsequent second and third rolling productions in late June and early July were both small and did not include *any* emails from arguably the most critical time period in this case: May 2020 through the end of December 2021, representing the peak of the Covid-19 global supply chain and congestion issues. Then, on July 28, 2026, Respondent served 34,448 documents representing over 92% of the total documents produced by Respondent. Complainant cannot adequately review all of these documents to (1) determine the ultimate sufficiency of ONE's production and (2) prepare for and take depositions of all fact witnesses by

August 27. While Complainant will make its best effort to review as many documents as it can and undertake the highest quality review it can under the circumstances, it would be prejudiced by not having sufficient time for a more fulsome study of the factual record prior to taking depositions. This concern is heightened by the simultaneous scheduling conflicts discussed below. While it is a regrettable situation, Complainant believes the best solution is to extend the deadline for deposing fact witnesses.

B. Numerous Depositions in August in Severed NBG Proceedings Contribute to the Need for an Extended Timeframe

Initially, NBG brought this proceeding against multiple Respondents but that proceeding was severed into multiple individual dockets. *See* Order Severing Cases and Initiating Discovery, Dkt. 3. Unfortunately, many of the depositions in the severed proceedings are happening at the same time as the period in which depositions must be scheduled in this proceeding pursuant to the current scheduling order. For Complainant, that means (1) its counsel's human resources are stretched unusually thin throughout August; (2) consequently, it has less flexibility than it would usually have to schedule times that are convenient for witnesses and Respondent's counsel; and (3) Complainant must work with its now-former employees to schedule depositions for multiple cases while avoiding conflicts with those former-employees' personal and professional schedules that may require such individuals to spend three days in depositions. As noted below, there are currently depositions scheduled or tentatively scheduled for ***most of the remaining business days in August*** (some of which start on one day and end on another day due to taking place in different time zones). Some days already have more than one deposition scheduled.

- August 4 (one deposition in *NBG v. OOCL*)
- August 5 (one deposition in *NBG v. OOCL*)
- August 9 (start of one deposition in *NBG v. Yang Ming/Evergreen*)

- August 10 (end of deposition in *NBG v. Yang Ming/Evergreen* identified above)
- August 11 (one deposition in *NBG v. OOCL*; start of one deposition in *NBG v. Yang Ming/Evergreen*)
- August 12 (end of one deposition in *NBG v. Yang Ming/Evergreen*; start of second deposition in *NBG v. Yang Ming/Evergreen*)
- August 13 (one deposition in *NBG v. OOCL*; end of deposition in *NBG v. Yang Ming/Evergreen* identified above)
- August 17 (one tentative deposition in *NBG v. Evergreen/Yang Ming*)
- August 18 (one deposition in *NBG v. Evergreen/Yang Ming*)
- August 19 (one tentative deposition in *NBG v. Evergreen/Yang Ming*)
- August 20 (one tentative deposition in *NBG v. Evergreen/Yang Ming*)
- August 21 (one tentative deposition in *NBG v. Evergreen/Yang Ming*)
- August 24 (one tentative deposition in *NBG v. Evergreen/Yang Ming*)
- August 26 (one tentative deposition in *NBG v. Evergreen/Yang Ming*)
- August 27 (one tentative deposition in *NBG v. Evergreen/Yang Ming*)
- August 28 (one deposition in *NBG v. Evergreen/Yang Ming*)

Complainant sincerely wants to accommodate the scheduling preferences of prospective deponents to the extent it can do so, especially as August is often a busy travel month for many witnesses. But Complainant's ability to accommodate witnesses' schedules is seriously impacted by the fact that there are many times when a significant number of Complainant's counsel will not be available due to other depositions. This factor suggests an extension is reasonable and will help all parties and witnesses achieve a reasonable deposition calendar.

In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct depositions for this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit

depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible. Although the Parties will continue to endeavor to adhere to the ordered schedule, genuine scheduling conflicts and the sheer number of documents produced may make for an impossible situation as is the case now. The Parties have worked cooperatively to limit extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available.

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

The volume of documents involved in this matter is much higher the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where over 30 depositions were taken.

III. Conclusion

Given that sufficient time is needed to perform a reasonable review of produced documents and accommodate potential deposition witnesses' schedules many of which are no longer employed by NBG and will require the issuance of subpoenas, and in Complainant's case there are additional scheduling concerns for the month of August, there is good cause to extend the remaining deadlines in the Presiding Officer's Second Amended Scheduling Order. Extending the deadlines approximately 30 days is necessary to **(1) provide the Parties a fair opportunity**

to review produced documents and assess any additional discovery, and (2) then to hold depositions in September after the current slate of depositions in the severed NBG proceedings have been completed. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

The Parties therefore jointly request the following amended schedule, which (accounting for weekends) moves 30 days from the deadlines of the Second Amended Scheduling Order:

EVENT	PROPOSED DEADLINE
Parties file Joint Status Report 4 regarding status of discovery	August 4, 2026 (unchanged)
Complete depositions of fact witnesses	September 28, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	September 28, 2026
Disclosure of initial expert reports, if any	October 9, 2026
Disclosure of rebuttal expert reports, if any	October 19, 2026
Complete expert depositions	November 2, 2026
Close of discovery	November 2, 2026
Complainant's Brief, proposed findings of fact, appendix due	December 2, 2026
Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due	January 4, 2027
Complainant's Reply Brief, response to Respondent's proposed findings of fact due	January 15, 2027

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Second Joint Motion to Extend Deadlines be granted.

Dated: August 4, 2026

Respectfully submitted,

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